Revision Date:
December 1, 2024

Background:
Any member of an Assistance Unit (AU) may be considered temporarily absent when absent from the home for one full calendar month or less. A child may be considered to be living in the home of a caretaker relative even though the child or the caretaker relative is temporarily absent from the home.

Purpose:
The purpose of this section is to define the factors to be considered when determining temporary absence status. This material revision is due to sunset date review. No policy or procedure changes have been made.

Policy:
Length of Temporary Absence Rules

- Any member of the AU can be temporarily absent from the home for one calendar month or less.
- One full calendar month is from the first day of the month through the last day of the month.
- If the individual is absent for the entire month of February, the calendar month is not considered completed until a full 30 days has transpired.
- A person confined in a correctional facility on the first of any month and expected to remain for one calendar month or more is to be considered permanently absent.

Examples:

- On February 2nd, an AU member leaves the home to visit other family and returns on March 16th. The person left after the 1st and was not gone for one calendar month. They would be considered temporarily absent.
- On April 16th, an AU member leaves home due to a death in the family and does not return until June 3rd. The person was gone more than one calendar month (May) and is not eligible for aid in June.
- In a non-leap year, an AU member leaves the home on February 1st. The person is not considered absent until March 3rd, after 30 days away from home.

Evaluating for Length of Absence Exception Factors
The following factors must be evaluated in determining exceptions to the one calendar month time limit for temporary absence. A single factor may not be conclusive:

- The actual family circumstances (even if it is inconsistent with a court custody order).
- The caretaker relative must continue to exercise responsibility for care and control of the child.
- The absent person has the ability and intent to return.
- In the case of an absent child, the caretaker relative has the ability to require the return of the child to the home.
- The caretaker relative continues to contribute to the support of the child.

Verification
Verification is required to document the basis of any exception to the one full calendar month time limit for temporary absence described below. Documentation consists of a third-party verification and a journal entry explanation.

Example:
The AU reports that a child has been hospitalized. Verification is required to document the basis of the temporary absence. Acceptable evidence that a child is hospitalized may include, but is not limited to, the following:

- An admittance documentation from the hospital.
- A letter from the admitting medical doctor or other legally qualified medical professional.
- Other documentation determined to be acceptable evidence that the child has been admitted to the hospital.

The documentation must include the date the child was admitted to the hospital and, if possible, the anticipated duration of the hospital stay. If the child remains hospitalized beyond the anticipated duration of the hospital stay, a new verification is required.

Reasons for Exceptions to the Length of Absence Time Limit
The following situations are exceptions to the one full calendar month time limit for a temporary absence from the home.

Reason for Absence	Description
Hospital Stay	As of January 1, 2014: • Any AU member may be considered temporarily absent during a hospital stay. • A hospital stay may include any in-patient admission to a medical hospital, a psychiatric care facility, or drug or alcohol rehabilitation treatment facility.
Employment	• An AU member absent from the home because of work is temporarily absent for the duration of the job. • Absence from the home to search for a job does not qualify for this exemption.
Institution of Higher Learning and Educational School (leading to high school diploma or equivalent) Vocational School (leading to a job)	• An AU member who is away from home to attend one of these institutions is considered temporarily absent when there is no local school that provides the same preparatory opportunities. • Individuals who qualify for this exemption continue to be considered temporarily absent during the period they are in school or training.
A Child with an Individualized Education Plan (IEP)	• A child who is away from home to attend a school that meets their special needs is temporarily absent when there is no local school that can meet the child's needs.
A Child in a Licensed Group Home	• When a child is in a licensed group home due to a crisis situation such as their parent:

	○ Being hospitalized. ○ Being Incapacitated. ○ Receiving respite care services to maintain family stability is considered temporarily absent if Foster Care is not paying for the child's care. • The caretaker relative continues to have care and control over the child. • This exemption is limited to the duration of the parent's illness or the other family crisis.
A child placed in out-of-home care by a Children's Services Protective Services Worker	• If the child's family is considered to be a CalWORKs Family Reunification, then the child is considered temporarily absent for up to 180 days. • The absence may be extended by order of Juvenile Court. • The child continues to be considered temporarily absent until returned home or reunification services are terminated by the Juvenile Court.

Procedure:
None.

Program Impacts:
None.

References:
- EAS 82-812.

Sunset Date:
This policy will be reviewed for continuance by December 31, 2027.

Approval for Release:

12-12-24

Rick Wanne, Director
Self-Sufficiency Services